

Section

Subject Matter

23

General provisions with respect to power given to any authority to make subsidiary legislation—

Where an Ordinance or Enactment confers power on any authority to make subsidiary legislation, such subsidiary legislation may at any time be amended, varied, rescinded or revoked by the same authority and in the same manner by and in which it was made.

28

Construction of provisions as to exercise of powers and duties—

(1) Where a written law confers a power or imposes a duty, then, unless the contrary intention appears, the power may be exercised and the duty shall be performed from time to time as occasion requires.

(2) Where a written law confers a power or imposes a duty on the holder of an office as such, then, unless the contrary intention appears, the power may be exercised and the duty shall be performed by the holder of the office for the time being or by a person duly appointed to act for him.

29

Power to appoint includes power to dismiss—

Where a written law confers upon any person or authority a power to make appointments to any office or place, the power shall, unless the contrary intention appears, be construed as including a power to dismiss or suspend any person appointed and to appoint another person temporarily in the place of any person so suspended or in place of any sick or absent holder of such office or place:

Provided that where the power of such person or authority to make such appointment is only exercisable upon the recommendation or subject to the approval or consent of some other person or authority, such power of dismissal shall, unless the contrary intention appears, only be exercisable upon the recommendation or subject to the approval or consent of such other person or authority.

30

Construction of enabling words—

Where a written law confers power on any person to do or enforce the doing of any act or thing, all such powers shall be understood to be also conferred as are reasonably necessary to enable the person to do or enforce the doing of the act or thing.

Federal Constitution

NOTES

Eleventh Schedule—(cont.)

Section 23

Inserted by Act 26/1963, section 70, in force from 16-09-1963.

Section

Subject Matter

32

Official designation to include officer executing duties—

When reference is made in any written law, instrument, warrant or process of any kind made or issued by the Yang di-Pertuan Agong, or a Ruler or any body or person having authority under any written law to make or to issue the same to any public officer by the term designating his office, such officer shall include the officer for the time being executing the duties of such office or any portion of such duties.

33

Power of Yang di-Pertuan Agong to provide for execution of duties of public officer during temporary absence or inability—

(1) Where by or under any written law any powers are conferred or any duties are imposed upon a public officer, the Yang di-Pertuan Agong or, in the case of a public officer borne on the establishment of a State, the Ruler of that State, may direct that if, during any period, owing to absence or inability to act from illness or any other cause, such public officer is unable to exercise the powers or perform the duties of his office in any place under his jurisdiction or control, such powers shall be had and may be exercised and such duties shall be performed in such place by a person named by, or by a public officer holding the office designated by, the Yang di-Pertuan Agong or Ruler, as the case may be; and thereupon such person or public officer, during any period as aforesaid, shall have and may exercise the powers and shall perform the duties aforesaid subject to such conditions, exceptions and qualifications as the Yang di-Pertuan Agong or Ruler may direct.

(2) Without prejudice to the provisions of subsection (1), when a substantive holder of any office is on leave of absence pending relinquishment of his office, it shall be lawful for another person to be appointed substantively in his place.

33c

Powers of board, etc., not affected by vacancy, etc.—

Where by or under any written law any board, commission, committee or similar body, whether corporate or unincorporate, is established, then, unless the contrary intention appears, the powers and proceedings of such board, commission, committee or similar body shall not be affected by—

- (a) any vacancy in the membership thereof;
- (b) any defects afterwards discovered in the appointment or qualification of a person purporting to be a member thereof; or
- (c) any minor irregularity in the convening of any meeting thereof.

Federal Constitution

NOTES

Eleventh Schedule—(cont.)

Section 33c

Inserted by Act 31/1965, subsection 2(1), in force from 16-09-1963.

Section

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35 *(Repealed).*

36 *Computation of time—*

In computing time for the purposes of any written law, unless the contrary intention appears—

- (a) a period of days from the happening of an event or the doing of any act or thing shall be deemed to be exclusive of the day in which the event happens or the act or thing is done;
- (b) if the last day of the period is a weekly holiday or a public holiday (which days are in this section referred to as excluded days) the period shall include the next following day not being an excluded day;
- (c) when any act or proceeding is directed or allowed to be done or taken on a certain day, then, if that day happens to be an excluded day, the act or proceeding shall be considered as done or taken in due time if it is done or taken on the next day afterwards, not being an excluded day;
- (d) when an act or proceeding is directed or allowed to be done or taken within any time not exceeding six days, excluded days shall not be reckoned in the computation of the time.

38 *Provision when no time prescribed—*

When no time is prescribed or allowed within which anything shall be done, such thing shall be done with all convenient speed and so often as the prescribed occasion arises.

39 *Construction of power of extending time—*

Where in any written law a time is prescribed for doing any act or taking any proceeding and power is given to a court or other authority to extend such time, unless the contrary intention appears the power may be exercised by the court or other authority although the application for the same is not made until after the expiration of the time prescribed.

40A *Solicitor General to exercise powers of Attorney General—*

(1) Unless in any written law it is otherwise expressly provided, the Solicitor General may perform any of the duties and may exercise any of the powers of the Attorney General.

Federal Constitution

NOTES

Eleventh Schedule—(cont.)

Section 35

This section was repealed by Act 25/1963, section 8, in force from 29-08-1963 and read as follows:

“Time of commencement—

35. Where any written law, or any part of a written law, or any instrument or notification made thereunder, is expressed to come into operation on a particular day, it shall, unless it be otherwise expressly provided, be construed as coming into operation immediately on the expiration of the day next preceding such day.”.

Section 39: Inserted by Act A857, section 5, in force from 20-08-1993.

Section

Subject Matter

(2) Where the Yang di-Pertuan Agong or any other person has lawfully delegated his powers to the Attorney General such delegation shall, unless otherwise expressly provided, be deemed to be delegation of powers to both the Attorney General and the Solicitor General.

42

Public officers—

A reference in any written law to any public officer by the usual or common title of his office shall, if there be such an office customarily in the Federation or any State and unless the contrary intention appears, be read and construed as referring to the person for the time being holding or carrying out the duties of that office in the Federation or State, as the case may be.

44

Construction of references to laws—

In any written law a description or citation of a portion of another written law shall, unless a contrary intention appears, be construed as including the word, section or other part mentioned or referred to as forming the beginning and as forming the end of the portion comprised in the description or citation.

46

(Repealed).

TWELFTH SCHEDULE

(Repealed)

THIRTEENTH SCHEDULE

[Articles 113, 116, 117]

Provisions relating to Delimitation of Constituencies**PART I****DECLARATION OF AND PRINCIPLES RELATING TO
THE DELIMITATION OF CONSTITUENCIES**

1. The constituencies for the election of members to the House of Representatives and the Legislative Assemblies of the States shall, until altered in accordance with the provisions of this Schedule, be those first used for elections to the House or Assembly, as the case may be, pursuant to this Constitution or the Malaysia Act.

Federal Constitution

NOTES

Eleventh Schedule—(cont.)

Section 46

This section was deleted by Act A1130, section 14, in force from 28-09-2001 and read as follows:

“English text to prevail—

46. In case of any conflict or discrepancy between the English text of a written law and any translation thereof, the English text shall prevail.”

Twelfth Schedule

This Schedule was repealed by Act 25/1963, section 8, in force from 29-08-1963 and read as follows:

“TWELFTH SCHEDULE

PROVISIONS OF THE FEDERATION OF MALAYA AGREEMENT, 1948 AS APPLIED TO THE LEGISLATIVE COUNCIL AFTER MERDEKA DAY

<i>Provisions of the Agreement</i>				<i>Modifications</i>
Clause 36	...	...	...	In subclause (2) the words “two <i>ex officio</i> members” shall be omitted and for the word “thirty-three” the word “thirty-five” shall be substituted.
Clause 36A	...	...	...	In subclauses (1) and (3) the words “with the concurrence of Their Highnesses the Rulers” shall be omitted.
Clause 38	...	...	...	For the words after “Malay States” the words “and the two Chief Ministers of Malacca and Penang” shall be substituted.
Clause 39	...	...	...	For the word “eight”, the word “ten” shall be substituted.
Clause 40	...	...	...	The words from “who the High Commissioner” to “proceedings of the Council” in subclause (1) and the words from “and who the High Commissioner” to “proceedings of the Council” in subclause (2) shall be omitted.
Clause 40A	...	...	...	In subclause (1) the words from “and who are able” to the end of the subclause shall be omitted. In subclause (2) for the words “from time to time in force in the Federation” the words “in force in the Federation immediately before Merdeka Day” shall be substituted.

Federal Constitution

NOTES

Twelfth Schedule—(cont.)

Provisions of the Agreement				Modifications
Clause 41	...	...	...	—
Subclauses (2) and (3) of Clause 41A...			...	In subclause (3) the words “who is not entitled to be so registered under the provisions of Clause 41B of this Agreement or” shall be omitted.
Clause 41c	...	...	...	—
Clause 42, other than subclause (3) thereof			...	—
Clause 43	...	...	...	In subclause (1) the words “ <i>ex officio</i> or” and paragraphs (a), (b) and (c) shall be omitted. In subclause (5) for the words from “of a Malay State” to “of any Settlement” the words “or Chief Minister of a State” shall be substituted; and for the words from “such other Member” to the end of the subclause the words “such other person as the Menteri Besar or Chief Minister may nominate” shall be substituted.
Clause 43A, other than subclause (3) thereof			...	—
Clause 45A	...	...	...	—
Clause 46	...	...	...	—
Clause 51	...	...	...	The words “and Their Highnesses the Rulers of the Malay States” and the proviso shall be omitted.
Clause 53	...	...	...	—
Clause 54, other than subclauses (2) and (6) thereof			...	In subclause (1) the words “the assent of Their Highnesses the Rulers and either” and all the words after “High Commissioner” to the end of the subclause shall be omitted. In subclause (3) the words from “according to” to “Secretary of State” and the words after “refuses to assent thereto” shall be omitted. In subclause (5) the words “and Their Highnesses the Rulers” shall be omitted.
Clause 56	...	...	...	The words “the rights of His Majesty, His Heirs and Successors, or” shall be omitted.
Clause 57	...	...	...	For the words “and Their Highnesses the Rulers for their assent” the words “for his assent” shall be substituted.
Clause 58	...	...	...	—

Federal Constitution

NOTES

Twelfth Schedule—(cont.)

Provisions of the Agreement				Modifications
Clause 59	...	...	...	—
Clause 60	...	...	...	—
Clause 61, other than subclause (4) thereof	...	...	...	In subclause (1) the words “with the assent of Their Highnesses the Rulers” shall be omitted. In subclause (2) after the words “at any time” the words “after the first day of January, 1959” shall be inserted.
Clause 61A	...	...	...	—
Subclause (1) of Clause 62...	...	...	...	—
Clause 64	...	...	...	—
In the First Schedule, Form IV	...	...	...	—
Seventh Schedule	...	...	...	— ”.

Thirteenth Schedule

1. This Schedule was added by Act 14/1962, section 31, in force from 21-06-1962.

Section 1

The words “those first used for elections to the House or Assembly, as the case may be, pursuant to this Constitution or the Malaysia Act” substituted for the words “those used for the first election to the House or Assembly, as the case may be, pursuant to the provisions of Article 171” by Act 26/1963, section 70, in force from 16-09-1963.

Section 2

The words “any unit of review” substituted for the words “the Federation and the States” by Act 26/1963, section 70, in force from 16-09-1963.

Paragraph 2(a)

The words “and regard ought to be had to the inconveniences of State constituencies crossing the boundaries of federal constituencies” were added by Act 26/1963, section 70, in force from 16-09-1963.

Paragraph 2(c)

1. The words “throughout the unit of review” were inserted after the words “approximately equal” by Act 26/1963, section 70, in force from 16-09-1963.
2. The words “the number of electors within each constituency in a State ought to be approximately equal” substituted for the words “the number of electors within each constituency ought to be approximately equal throughout the unit of review” by Act A206, paragraph 15(1)(a), in force from 23-08-1973.
3. All the words immediately following the words “a measure of weightage for area ought to be given to such constituencies” is deleted by Act A206, paragraph 15(1)(b), in force from 23-08-1973.

Paragraph 2(d)

The words “and to the maintenance of local ties” substituted for the words “and of any local ties which may be broken by such alterations” by Act 26/1963, section 70, in force from 16-09-1963.